



**U.S. DEPARTMENT of STATE**

**PRIVILEGED INSTRUCTIONS**

**UNITED STATES OF AMERICA**



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## Privileged Instructions

### Fundamental Principles

- Advance United States security interests in the Arctic.
- Strengthen international cooperation to counter Russian and Chinese influence.
- Protect the Arctic environment: conserve its natural resources but do not let it inhibit economic activities.

### Desired End States

- PRIMARY: Defend U.S. sovereignty in the Arctic and maintain a constant presence.
- ALTERNATE: Ensure Freedom of Navigation throughout the Northern Sea Route (NSR) and Northwest Passage (NWP).
- Additional details tied to end states above:
  - Defend U.S. interests in the Arctic including military, economic, and conservation efforts.
  - Strengthen the NATO operational capabilities and burden-sharing to improve its ability to respond to crises in the Arctic.
  - Maintain continued access to basing within partner Arctic nations.

### Primary Guidance Background

The renewal of great power competition with China and Russia plays into our position in the Arctic. Our close ties, and alliance, with Canada, Denmark, Finland, Iceland, and Norway must be utilized to balance Russia and China in the Arctic. With the impending admission of Sweden into NATO will help bolster our positions against them.

### Delegation Instructions

***Ensure periodic reports, requests for further guidance, or clarifications to the instructions herein are submitted via message to the office of the Secretary of State.***

**GENERAL:** Below are our positions during this conference. Deviations from these instructions are to be conferred with the Secretary of State prior to negotiating.

Utilize our close ties with our allies in creating a united front against Russia and China. The differences we may have with our allies should not overshadow your work to show a united front. You are not to negotiate bilaterally with China regarding Arctic governance policies. They have no territory in the region and are not a legitimate participant regarding governance.

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### Territory

We have considerable interest in the Arctic. We have a duty to protect our nation against foreign aggression as well as maintain control over our territory.

## **NOTIONAL EXERCISE MATERIAL FOR EDUCATIONAL PURPOSES ONLY**

Though we are not signatories of UNCLOS, we do honor the delineation of the different waters and zones defined within it. All other Arctic states are all signatories.

The NSR traverses Russian EEZ waters. As such they have attempted to ban military vessel transit without 90-day prior notice to Moscow. Transit outside of the 12 nautical mile territorial waters, and outside a Strait situation, all vessels are granted freedom of navigation. Inside territorial waters and straits passage the right of innocent passage applies.

In respects to the NWP, we consider the route to be an international strait, in accordance with UNCLOS. This status retains the right of innocent passage and freedom of navigation that underpins the principles of international trade. Canada views this route as traversing internal waters and that they will lose control over sovereign waters in their "high north." Regardless of the route's non-continuous usage it is still the fastest way to traverse from the Atlantic to the Pacific. We have operated under the 1988 Arctic Cooperation Agreement with Canada. Under this agreement we do not recognize the passage as internal waters. Canada automatically grants U.S. ships permission to transit, though we do not ask for this permission. If the route opens up for continuous usage we will still maintain our stance of it being an international strait.

Our dispute with Canada over the Beaufort Sea is our most significant dispute in the Arctic. Continue to minimize tensions but our position to utilize the equidistance principle, not the 141st meridian line from the land out into the sea, must be accepted. Until this is resolved we cannot issue fishing licenses for this resource-rich area of the Beaufort Sea.

### **Red Lines:**

- Russia asserts control over the NSR with military oversight.
  - Canada requests transit notification of the NWP for any vessel.
  - Any agreements that limit/deny freedom of navigation and the free flow of international trade.
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### **Militarization**

The militarization of the Arctic has increased in recent years. The growth of Russia's Arctic military presence is of concern. We see the potential of Russia using military "strong-arm" tactics to assert its control over the NSR. Their unlawful regulation of marine traffic undermines global interests.

China's activities in the Arctic have been steadily growing. Through their domestic construction of icebreakers, conducting joint military exercises with Russia, and investing in infrastructure in Nordic nations their actions are gaining them a strong foothold in the region. The economic advantages they seek, for their involvement in the Arctic, must be balanced with prudent management of their relationship(s) with Arctic nations.

The fleet of ice breakers already employed by Russia, and being built in China, has significantly outpaced our efforts in this capability. Through this capability, Russia and China are able to access the NSR for longer periods of time throughout the year. This also allows Russia's Northern Fleet greater access and operational maneuver space within the Arctic.

Our reactivation of 2<sup>nd</sup> Fleet is a first step towards posturing ourselves in the Arctic. A new ice breaker fleet is still a decade away though. Continued exercising with our NATO allies, on Arctic response, is vital to ensure a balance. With only five, of thirty members, fully engaged in the Arctic, investment in capabilities to fight in the Arctic is minimal.

We must achieve greater awareness of activity in the region, and intelligently evolve our Arctic infrastructure and capabilities. Our partnership with Canada in NORAD must be used as leverage with Canada on any decisions they may attempt to agree to with China and Russia. Canada lacks the

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capacity for an independent Arctic Policy, and as such, security falls on the U.S. and we must ensure that they support our policy positions. Highlight our disappointment in the revelation that they were training Chinese troops in Arctic combat without our knowing.

### **Red Lines:**

- Any move to reduce freedom of navigation in either the NSR or NWP.
  - Any permanent Chinese military presence in the Arctic.
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### **Resources**

Development of the Arctic has the potential for nations to profit financially. U.S.-based oil and gas producing companies are well suited to explore and extract resources. We must ensure that they have an advantage in negotiating with other Arctic states in gaining contracts and licensing rights. This will guard against other nations weaponizing energy supplies.

Retaining strategic petroleum reserves and preserving natural resources is of high concern. With our 1990 agreement with Russia we don't have the same conflicts that other Arctic states have on energy exploration and extraction. In this regard we can be an honest broker between other Arctic states to help resolve disputed regions where oil and gas extraction is a key factor in their disputes.

Before Greenland recently cancelled mineral extraction contracts with China, they were willing to allow Chinese firms to exploit their natural resources. Uranium, along with other rare earth minerals, are key to China's continued economic and military development. Pressure must be put on Denmark/Greenland to restrict further contracts being granted to China.

Protecting Arctic fishing is vital to future harvesting of this resource. Without proper regulations on fishing the overfishing issue seen in the other oceans of the world may develop. Monitoring of the commercial fishing ban must be a multilateral effort of the nine nation signatories. The joint programme of scientific monitoring must continue to inform decisions on extension of this moratorium.

### **Red Line:**

Any claims to extend exploration rights and licenses within disputed Arctic areas.

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### **Environment**

Preservation of the fragile Arctic ecosystem is important. Sensible policies allow for economic growth, increased energy production, and reduce air and water pollution and greenhouse gas emissions.

We can expect other nations to criticize our leaving of the Paris Climate Agreement. We need to emphasize that leaving was related to classification of China as a developing nation and lack of real limits to their emission restrictions. China isn't taking any serious reduction actions until 2030. Our overall CO<sub>2</sub> emissions have been reduced to the lowest levels since before 2000. When you take into account per capita emissions we have reduced by 20-percent over historic peaks.

We will continue to be good stewards for the Arctic environment and responsibly use its resources. There must be an integrated Arctic management framework to chart the Arctic region, employ scientific research, and dialog to increase our understanding of the Arctic.

Support of the Arctic council, in these steps, is key to an integrated plan that all nations adhere to.

### **Governance**

The conflict between UNCLOS and previous treaties and agreements provides areas of disagreement between states. We honor UNCLOS and adhere to its rulings but are not held to the regulatory bodies regarding it. We are working toward accession to UNCLOS and should overcome internal political hurdles shortly.

We support the Arctic Council but feel that this forum should be a place for security discussions as well as the economic and environmental issues. Both Iceland and Finland support our position of using the Council for security discussions. Through the council we have an opportunity to advance our interests in the Arctic. Use the charter members to discuss matters relevant to the Arctic and limit the discussion from observer states.

We do not support China's accession to member state status on the Arctic Council. These positions on the Council should be reserved for Arctic states only. We also do not support the inclusion of the European Union as a permanent observer to the Council.

We will work through bilateral relationships, and multilateral bodies, to pursue arrangements that advance the collective interests and promote shared Arctic state prosperity.

### **Red Lines:**

Any attempt to make China a principal member of the Arctic Council.

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### **Population**

We recognize the many native North American tribes that populate the state of Alaska. Through treaty and laws we acknowledge their right to retain certain powers and self-government. At the federal-level we hold broad authority over Indian Affairs and hold a trust and obligation to protect Indian property and interests.